

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent and Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: August 15, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER GRANTING JOINT MOTION FOR ENTRY OF PROTECTIVE ORDER

On August 14, 2025, the parties filed a Joint Motion for Entry of Protective Order, attaching a proposed order. The motion states that “a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” Mot. at 1.

The Initial Order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 5.

The proposed protective order is reasonable however, the parties should note that confidential materials filed in the proceeding are addressed in the initial order:

21. *Use in the proceeding* --If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden

is on the party seeking to protect the information to show good cause for its protection.

Initial Order at 5. Similarly, entire transcripts of depositions may not be designated confidential when used in this proceeding, despite any conflicting terms in this protective order. *Id.*

Moreover, to the extent that the proposed protective order refers to filing dates that conflict with the Commission's Rules, the Rules shall apply. Contrary to the proposed protective order at paragraph 7, when confidential versions of documents are filed with the Commission, a public version of the document must be filed within three (3) business days thereafter. 46 C.F.R. § 502.5(a)(2)(ii). Only the portions of documents containing confidential material may be redacted. 46 C.F.R. § 502.5(a)(2)(iii). In addition, contrary to the terms of the proposed protective order at paragraph 12(c), if a motion contesting a designation of confidentiality is filed, a response to the motion must be served and filed within seven (7) days of the motion. 46 C.F.R. § 502.71(b).

The parties should note that after the initial decision is issued, the undersigned may not have authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

The parties have established good cause to enter the proposed protective order. Accordingly, the joint motion is **GRANTED**, and it is hereby **ORDERED** that the protective order be entered as modified by the above as an order in this proceeding.



Linda S. Harris Crovella
Administrative Law Judge